

FINAL RESULTS

Senate Bill 2405 Parker (Canales)

Summary

The Texas Department of Criminal Justice (TDCJ) and the other adult criminal justice entities subject to this Sunset review — the Board of Pardons and Paroles (BPP), Windham School District, and Correctional Managed Health Care Committee — are once again at a critical point. This review occurred in the context of these entities confronting serious challenges in executing their mission to safely confine, supervise, and provide services for adults convicted of certain crimes in Texas. To help TDCJ and its counterparts prevent current problems from becoming unmanageable, widespread crises in the coming years, SB 2405 addresses current problems with facilities and staffing by requiring TDCJ to plan for its future facility and capacity needs. Additionally, the bill requires TDCJ to improve rehabilitation program planning and evaluation to better support the successful outcomes necessary for inmates to safely reenter the community. The bill also makes improvements to BPP's processes with the goal of improved fairness, consistency, and transparency and eases burdens on the often underappreciated parole staff who serve a critical public safety role in Texas' communities. Finally, the bill continues TDCJ for 12 years. The other criminal justice entities are not subject to abolishment through the Sunset Act and will be reviewed alongside TDCJ again in 12 years.

The following material summarizes results of the Sunset review of Texas Criminal Justice Entities, including management actions directed to the entities that did not require legislative action.

ISSUE 1 — A Changing Workforce and Inmate Population Make Multiple TDCJ Facilities Almost Impossible to Adequately Staff.

Recommendation 1.1, Adopted as Modified — Require TDCJ to create a long-term facilities plan that identifies facility and capacity needs.

Recommendation 1.2, Not Adopted — Require TDCJ to develop a phased plan to close facilities with persistent staffing challenges.

Recommendation 1.3, Adopted — Eliminate the requirement for TDCJ to maintain state jails in nine regions from statute.

Recommendation 1.4, Adopted — Eliminate unit maximum capacities from statute.

ISSUE 2 — TDCJ's Policies and Practices Contribute to and Inadequately Address Its Staffing Crisis

Recommendation 2.1, Adopted — Direct TDCJ to consolidate and expand its existing workforce retention and support functions under one department to better support employees and systematically identify root causes of turnover. (Management action – nonstatutory)

Recommendation 2.2, Adopted — Direct TDCJ to conduct job task analyses for key roles, clarify task prioritization, and tailor evaluations, hiring objectives, and training materials as needed. (Management action – nonstatutory)

Recommendation 2.3, Adopted — Direct TDCJ to provide additional guidance in policy on appropriate use of disciplinary and corrective actions for both subordinates and supervisors. (Management action – nonstatutory)

Recommendation 2.4, Adopted — Direct TDCJ to clarify and streamline its process for employees to file formal workplace issues and consider creating an avenue for anonymous complaints. (Management action – nonstatutory)

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Recommendation 2.6, Adopted — Direct TDCJ to strengthen policies and processes for employees to seek out, participate in, and track trainings as a path to advancement within the agency. (Management action – nonstatutory)

Recommendation 2.7, Adopted — Direct TDCJ to update and standardize its telework policy. (Management action – nonstatutory)

Recommendation 2.8, Adopted — Direct TDCJ to more consistently collect and analyze feedback from both current and separating staff. (Management action – nonstatutory)

ISSUE 3 — Uncoordinated Strategic Planning and Outdated Data Systems and Practices Hinder TDCJ from Effectively Modernizing to Address Technology and Staffing Challenges.

Recommendation 3.1, Adopted — Direct TDCJ to establish an office of modernization and strategic initiatives. (Management action – nonstatutory)

Recommendation 3.2, Adopted — Direct TDCJ to develop a plan to prioritize improving its data collection and analysis, focusing on correctional and parole functions. (Management action – nonstatutory)

Recommendation 3.3, Adopted — Direct TDCJ to establish and maintain a report that enables users to view an array of indicators on prison health and safety. Additionally, this management action will include the following other components:

- Direct TDCJ to track and report key metrics and performance indicators related to transferring inmates from county jails to TDCJ facilities and certifying commitment documents. As part of this management action, TDCJ will track information on the number of and reasons why “pen packets” require corrective actions. TDCJ will also track the number of days it takes to review packets for certification and report on instances the agency goes beyond the statutorily required five days to certify the packets or request corrective action. TDCJ will regularly report this information on the public-facing dashboard, including its average intake time in days and time it takes counties to correct, and advise counties how to submit packets successfully.
- Direct TDCJ to include as part of the agency’s public-facing dashboard health and safety indicator information regarding the immigration status and other related statistical information of incarcerated individuals in TDCJ custody.

- Direct TDCJ to include statistical information regarding parolees in the information that the agency will publish and develop a public-facing dashboard for. This information will include any data regarding subsequent arrests, revocations, and dually supervised individuals who are on probation and parole. This information also will include statistical and general data relating to parole and mandatory supervision, including the names of releasees and data recorded relating to parole and mandatory supervision services, as contemplated in Section 508.313(b) of the Texas Government Code. (Management action – nonstatutory)

Recommendation 3.4, Adopted — Direct TDCJ to establish administrative directives for the data governance program plan established by the Data Management Office. (Management Action – nonstatutory)

Recommendation 3.5, Adopted — Direct TDCJ to develop a written plan to phase out paper-based processes, reduce manual data processes, and identify opportunities for automation. As part of its planning to implement this management action direct TDCJ to include considerations necessary to make additional common processes and information available on inmate tablets:

- Information necessary to understand the status of and decisions around custody level classification, including promotion to G1 custody level or trusty status.
- Information related to an inmate’s institutional record that could impact a parole outcome, including the inmate’s disciplinary record and progress towards completing an individual treatment plan (ITP), as applicable.
- Parole status letters. (Management action – nonstatutory)

Recommendation 3.6, Adopted — Direct TDCJ to evaluate its process for reviewing external research requests. Additionally, TDCJ, along with the Windham School District, will explore data-sharing agreements with any Education Research Center established under Section 1.005 of the Texas Education Code. (Management action – nonstatutory)

ISSUE 4 — The State Lacks Sufficient Oversight and Strategic Planning for Inmate Rehabilitation Programs.

Recommendation 4.1, Adopted as Modified — Require TDCJ to comprehensively inventory rehabilitation and reentry programs, conduct biennial program evaluations, and recommend changes to programs when needed.

Recommendation 4.2, Adopted as Modified — Require TDCJ to develop a strategic plan for rehabilitation and reentry programs in conjunction with Windham and report on implementation status biennially.

Recommendation 4.3, Adopted — Require TDCJ to track parole-voted program voting data and use these data to inform strategic program planning.

Recommendation 4.4, Adopted — Require TDCJ to prioritize parole-voted program decisions.

Recommendation 4.5, Adopted — Require TDCJ, BPP, and Windham to collaborate in developing evidence-based ITP and parole-voted program criteria and to develop and maintain associated program lists.

Recommendation 4.6, Adopted — Require TDCJ to revise the ITP to include a comprehensive, plain language list of program participation information with clear distinctions between evidence-based and non-evidence-based program participation.

Recommendation 4.7, Adopted — Remove volunteer and faith-based program reporting requirement for wardens.

Recommendation 4.8, Adopted as Modified — Require TDCJ staff to report on volunteer and faith-based program data and ensure volunteer and faith-based programming needs are met at each facility.

Recommendation 4.9, Adopted — Direct TDCJ to merge the Rehabilitation Programs Division and the Reentry and Integration Division. (Management action – nonstatutory)

Recommendation 4.10, Adopted — Direct BPP to make parole-voted program decisions independent of TDCJ program placement practices. (Management action – nonstatutory)

Recommendation 4.11, Adopted — Direct TDCJ to develop volunteer program assessment criteria and regular monitoring and assessment policies to ensure sufficient volunteer program oversight and strategic use of volunteer resources. (Management action – nonstatutory)

Recommendation 4.12, Adopted as Modified — Modify language in the General Appropriations Act to direct TDCJ to transfer administration and management of postsecondary correctional education to Windham through a memorandum of understanding. Additionally, this provision allows for the use of funds for additional purposes. This change specifies Windham may use funds for costs of attendance including tuition, books, course materials, and fees, and for other direct costs that benefit students' postsecondary education such as information technology, program startups, and program enhancements. (Change in appropriation)

ISSUE 5 — Critical Statutory and Structural Deficiencies Strain an Already Overextended Parole System, Creating Unnecessary Barriers to Effective Supervision.

Recommendation 5.1, Adopted — Abolish the PO salary career ladder and require TDCJ to establish it in rule.

Recommendation 5.2, Adopted as Modified — Abolish statutory maximum parole caseload ratios and require TDCJ to establish them in rule.

Recommendation 5.3, Not Adopted — Require TDCJ and BPP to evaluate post-release special conditions that may be temporarily modified by POs and require TDCJ and BPP to establish corresponding modification processes in rule.

Recommendation 5.4, Not Adopted — Prohibit the Parole Division from making recommendations of additional special conditions prior to release.

Recommendation 5.5, Adopted — Direct the Parole Division to report supervision trends and workload impacts of supervision conditions to BPP annually. (Management action – nonstatutory)

ISSUE 6 — BPP Does Not Ensure Its Decision-Making Processes are Fair, Consistent, Transparent, and Data-Informed.

Recommendation 6.1, Adopted as Modified — Require BPP to collect and analyze data for release decisions, special conditions, and revocations and incorporate the findings into training for voters and staff.

Recommendation 6.2, Adopted — Require BPP to provide training for Medically Recommended Intensive Supervision (MRIS) process voters.

Recommendation 6.3, Adopted — Require BPP to establish a process in rule for assessments of an inmate's prognosis for MRIS cases. Additionally, this provision specifies that if an inmate qualifies for MRIS due to medical factors, one or more health care practitioners will conduct a review and provide MRIS voters a written report on the inmate's condition and medical evaluation that specifically describes how the inmate's illnesses and treatments will affect their cognitive and physical abilities and limitations.

Recommendation 6.4, Adopted — Require BPP to establish in rule the factors considered in MRIS decisions.

Recommendation 6.5, Adopted — Require BPP and TDCJ's Parole Division to create a special conditions working group consisting of voters and Parole Division staff representatives.

Recommendation 6.6, Adopted — Direct BPP to develop formal and detailed internal processes to address variations from parole guidelines. (Management action – nonstatutory)

Recommendation 6.7, Adopted — Direct the agency to review its Institutional Parole Officer (IPO) interview procedures and take action to increase effectiveness and consistency. As part of this management action, should BPP decide interviews continue to be necessary, the agency will create a baseline list of standard questions to build from instead of scripted questions, work with TDCJ to make the standardized list of interview questions available to inmates and the public in its Parole in Texas report, and publish the questions to inmate tablets through the "FYI" application and in prison libraries. As part of this management action, BPP should work with TDCJ to review the information provided to the public and inmates regarding the parole and clemency processes and ensure it is clear and accessible. (Management action – nonstatutory)

Recommendation 6.8, Adopted — Direct the agency to review its case summary preparation processes and take action to address inefficiencies. (Management action – nonstatutory)

Recommendation 6.9, Adopted — Direct BPP to work with the Texas Correctional Office on Offenders with Medical or Mental Impairments (TCOOMMI) to establish a method to videoconference with an inmate who qualifies for MRIS due to a medical condition. (Management action – nonstatutory)

Recommendation 6.10, Adopted — Direct BPP to identify and address barriers to completing noncapital clemency applications and post relevant guidance on its website. (Management action – nonstatutory)

ISSUE 7 — The State Has a Continuing Need for the Texas Department of Criminal Justice.

Recommendation 7.1, Adopted — Continue the Texas Department of Criminal Justice and Texas Board of Criminal Justice for 12 years.

Recommendation 7.2, Adopted — Direct TDCJ to eliminate the Private Facility Contract Monitoring and Oversight Division and reallocate existing resources elsewhere within the agency. (Management action – nonstatutory)

ISSUE 8 — Texas Criminal Justice Entities’ Statutes and Processes Do Not Reflect Some Standard Elements of Sunset Reviews.

Recommendation 8.1, Adopted — Update for the committee the standard across-the-board requirement regarding grounds for removal of a board member.

Recommendation 8.2, Adopted — Update for TDCJ, BPP, and the committee the standard across-the-board requirement related to board member training.

Recommendation 8.3, Adopted — Update for BPP the standard across-the-board requirement related to developing and maintaining a complaints system and making information on complaint procedures available to the public.

Recommendation 8.4, Adopted — Abolish three of TDCJ’s reports, adjust the deadlines for three others, and continue all other reporting requirements for TDCJ, the committee, Windham, and BPP.

Recommendation 8.5, Adopted — Continue the Judicial Advisory Council and the TCOOMMI advisory committee.

Recommendation 8.6, Adopted — Remove the Advisory Committee on Agriculture from statute.

Recommendation 8.7, Adopted — Update TDCJ’s statute to reflect the requirements of the person-first respectful language initiative.

Recommendation 8.8, Adopted — Direct Windham to adopt a rule review plan. (Management action – nonstatutory)

NEW ISSUES ADDED BY THE SUNSET COMMISSION

Annual Training For Counties, Adopted — Require TDCJ to provide annual trainings to counties on how to submit commitment documents, known as “pen packets.”

Expedited Training For Correctional Officers, Adopted — Direct TDCJ to explore expedited training pathways for qualified correctional officer (CO) candidates, including former COs, COs from other states, members of the military, and law enforcement personnel. As part of this management action, TDCJ should establish an expedited training curriculum, rather than the normal six weeks, for qualified candidates as defined by the agency. (Management action – nonstatutory)

Postsecondary Education, Adopted

- Update Chapter 19 of the Texas Education Code with the following two changes:
 - Reflect education practitioner norms by updating terminology, including replacing “inmate” with “student,” “vocational training” with “career and technical education,” “GED” with “high school equivalency program,” and “ESL” with “English as a second language program.”
 - Facilitate Windham’s new role of overseeing postsecondary education by authorizing data sharing with other agencies and regulatory entities.

- Direct Windham School District to explore Texas State Technical College (TSTC) and community college partnerships generally. This management action directs the district to consider partnership opportunities between Windham and TSTC, and any other community colleges as applicable, to expand postsecondary career and technical education (CTE) at locations experiencing CTE program shortages due to instructor staffing or availability of specific high-demand programs. (Management action – nonstatutory)

Texas Board of Criminal Justice Experience Requirements, Adopted — Require that at least two members of the Texas Board of Criminal Justice board possess significant business or corporate experience.

Provisions Added by the Legislature

Assaults by Staff — Require TDCJ's executive director to refer all assaults on inmates by TDCJ staff to law enforcement.

Compensatory Time — Require TDCJ to credit employees' unused compensatory time as vacation leave.

Complaint Notice — Require TDCJ to provide a notice, instead of a written copy, of the department's policies and procedures relating to complaint investigation and resolution.

Criminal Justice Policy Council — Remove the defunct Criminal Justice Policy Council from statute and require the State Auditor's Office instead of the council to examine records and operations of the criminal justice system every five years.

MRIS Statute Improvements — Streamline the statute, authorize BPP to expand medical eligibility by rule, and update the composition of panels.

Nonsubstantive Statutory Changes — Update statute related to the TDCJ board's duties and the board-reporting entities, including the Office of the Independent Auditor, Office of the Independent Ombudsman, and Office of the Inspector General. Additionally, update outdated agency, division, and office name references and terms and align statute with TDCJ's existing organizational structure and operations.

Parole Staff Qualifications — Authorize TDCJ to establish a process to waive parole staff qualifications.

Postsecondary Higher Education — Codify part of TDCJ's General Appropriations Act Rider 26, which as updated from a Sunset recommendation specifies that Windham administers postsecondary education, by requiring releasees to repay postsecondary tuition and fees. Additionally, establish a Postsecondary Education Advisory Board to advise Windham and TDCJ regarding postsecondary education programs. Additionally, require Windham to evaluate postsecondary education programs, require Windham to disaggregate reported evaluation results by sex, and require the report to include information about students who complete training in a regulated industry who were denied industry licensure.

Prison Maximum Capacity — Update the process for TDCJ to increase prison facility maximum capacities, including removing the governor and attorney general from the review process when TDCJ updates capacity. Additionally, authorize TDCJ's board, instead of the attorney general, to allow TDCJ to exceed 100 percent of unit capacity in certain situations.

Reporting Requirement Changes — Clarify requirements of and move due dates for some required reports from September 1, 2026, to December 1, 2026, including the initial long-term facilities plan.

Fiscal Implication Summary

Overall, the Sunset review of TDCJ will result in \$1,469,752 savings over two fiscal years and \$151,008,000 savings over five fiscal years. The Sunset Commission's management actions will result in savings to General Revenue of about \$734,876 annually, and starting in fiscal year 2028, savings of about \$49,111,430 annually to TDCJ if the agency successfully implements the provisions in SB 2405. Otherwise, though several management actions and bill provisions will not have a significant fiscal impact to the state, some will result in costs and savings that will depend on implementation and cannot be determined at this time.

SB 2405 requires TDCJ to reduce rehabilitation program placement timelines by 50 percent and eliminate program placement delays starting September 1, 2027. Based on Sunset staff's calculations using agency-provided data, successfully implementing this bill provision will likely result in a total savings of \$147,334,290 by the end of fiscal year 2030. Savings associated with this could be returned to General Revenue or appropriated back to the agency for other functions beginning in fiscal year 2028.

The management action adopted by the Sunset Commission to merge the Rehabilitation Programs Division and the Reentry and Integration Division will result in a small cost savings to the state of about \$202,213 in salary and benefits for each of the next five fiscal years and the reduction of at least one full-time equivalent employee.

The management action adopted by the Sunset Commission to eliminate the Private Facility Contract Monitoring and Oversight Division will result in a small cost savings of about \$532,663 in salary and benefits for each of the next five fiscal years and a reduction of three full-time equivalent employees.

Texas Department of Criminal Justice

Fiscal Year	Savings to the General Revenue Fund	Savings to TDCJ from Reduction in Parole Voted Placement Times	Savings to TDCJ from Elimination of Program Placement Delays	Change in FTEs From 2023
2026	\$734,876	\$0	\$0	-4
2027	\$734,876	\$0	\$0	-4
2028	\$734,876	\$29,540,544	\$19,570,886	-4
2029	\$734,876	\$29,540,544	\$19,570,886	-4
2030	\$734,876	\$29,540,544	\$19,570,886	-4

SUNSET COMMISSION DECISIONS

Summary

The following material summarizes the Sunset Commission's decisions on the staff recommendations for the Texas Criminal Justice Entities, as well as modifications and new recommendations developed in response to testimony at the public hearing.

The Texas Department of Criminal Justice (TDCJ) and the other adult criminal justice entities subject to this Sunset review — the Board of Pardons and Paroles (BPP), Windham School District, and Correctional Managed Health Care Committee — are once again at a critical point. This review occurred in the context of these entities confronting serious challenges in executing their mission to safely confine, supervise, and provide services for adults convicted of certain crimes in Texas, and the Sunset Commission's recommendations would help TDCJ and its counterparts prevent current problems from becoming unmanageable, widespread crises in the coming years.

While the sheer size and complexity of Texas' sprawling prison system is unique, TDCJ faces the same national trend as its peers in other states — hiring people to work in corrections is difficult. The uncomfortable reality is some of Texas' prisons are located in places where hiring sufficient correctional staff is nearly impossible, so the commission determined TDCJ must concurrently plan for the future to locate or expand facilities in places where the agency can adequately staff them while also greatly improving internal human resources functions and processes to retain existing staff.

The Sunset Commission also found TDCJ to be in significant need of modernization. Without better strategic planning and data practices, the agency will continue to reactively lurch from emergency to emergency. Additionally, TDCJ's approach to rehabilitation programs, many of which inform BPP's determination of the potential for an inmate to safely reenter the community, suffer from deficiencies that undermine the Legislature's significant investment in these programs. To overcome these deficiencies, the commission recommends requiring enhanced rehabilitation planning and evaluation to better ensure beneficial program outcomes.

The Sunset Commission also took a close look at the parole system — both the processes by which BPP decides whether to grant early release to eligible inmates and the processes by which TDCJ's parole officers supervise releasees. Sunset focused on improved fairness, consistency, and transparency of BPP's decision-making processes and also found the need for more efficient TDCJ parole processes to ease burdens on the often underappreciated parole staff who serve a critical public safety role in Texas' communities.

Despite finding considerable areas for improvement across the criminal justice entities under review, Sunset determined that Texas continues to benefit from TDCJ's oversight and management of a system in which a single state agency supports probation and directly provides incarceration and parole supervision. Accordingly, the commission recommends continuing TDCJ for 12 years and aligning its Sunset review to coincide with that of the other criminal justice entities.

ISSUE 1

A Changing Workforce and Inmate Population Make Multiple TDCJ Facilities Almost Impossible to Adequately Staff.

Recommendation 1.1, Adopted as Modified — Require TDCJ to create a long-term facilities and staffing plan that identifies future needs and makes recommendations to organize resources and capacity accordingly. Additionally, require TDCJ to include as part of the long-term facilities and staffing plan a phased plan to close facilities with persistent staffing challenges. This inclusion would merge the planning from Recommendation 1.2 to close facilities with persistent staffing challenges into the overall long-term planning in Recommendation 1.1. All other requirements and considerations from Recommendation 1.2 would be included in Recommendation 1.1 as part of this recommendation.

Recommendation 1.2, Not Adopted — Require TDCJ to develop a phased plan to close facilities with persistent staffing challenges.

Recommendation 1.3, Adopted — Eliminate the requirement for TDCJ to maintain state jails in nine regions from statute.

Recommendation 1.4, Adopted — Eliminate unit maximum capacities from statute.

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Recommendation 6.5, Adopted — Require BPP and TDCJ's Parole Division to create a special conditions working group consisting of voters and Parole Division staff representatives.

Recommendation 6.6, Adopted — Direct BPP to develop formal and detailed internal processes to address variations from parole guidelines. (Management action – nonstatutory)

Recommendation 6.7, Adopted as Modified — Direct the agency to review its Institutional Parole Officer (IPO) interview procedures and take action to increase effectiveness and consistency. As part of this recommendation, should BPP decide interviews continue to be necessary, direct the agency to create a baseline list of standard questions to build from instead of scripted questions, work with TDCJ to make the standardized list of interview questions available to inmates and the public in its Parole in Texas report, and publish the questions to inmate tablets through the “FYI” application and in prison libraries. As part of this recommendation, also direct BPP to work with TDCJ to review the information provided to the public and inmates regarding the parole and clemency processes and ensure it is clear and accessible. (Management action – nonstatutory)

Recommendation 6.8, Adopted — Direct the agency to review its case summary preparation processes and take action to address inefficiencies. (Management action – nonstatutory)

Recommendation 6.9, Adopted — Direct BPP to work with TCOOMMI to establish a method to videoconference with an inmate who qualifies for MRIS due to a medical condition. (Management action – nonstatutory)

Recommendation 6.10, Adopted — Direct BPP to identify and address barriers to completing noncapital clemency applications and post relevant guidance on its website. (Management action – nonstatutory)

ISSUE 7

The State Has a Continuing Need for the Texas Department of Criminal Justice.

Recommendation 7.1, Adopted — Continue the Texas Department of Criminal Justice and Texas Board of Criminal Justice for 12 years.

Recommendation 7.2, Adopted — Direct TDCJ to eliminate the Private Facility Contract Monitoring and Oversight Division and reallocate existing resources elsewhere within the agency. (Management action – nonstatutory)

ISSUE 8

Texas Criminal Justice Entities' Statutes and Processes Do Not Reflect Some Standard Elements of Sunset Reviews.

Recommendation 8.1, Adopted — Update for the committee the standard across-the-board requirement regarding grounds for removal of a board member.

Recommendation 8.2, Adopted — Update for TDCJ, BPP, and the committee the standard across-the-board requirement related to board member training.

Recommendation 8.3, Adopted — Update for BPP the standard across-the-board requirement related to developing and maintaining a complaints system and making information on complaint procedures available to the public.

Recommendation 8.4, Adopted — Abolish three of TDCJ's reports, adjust the deadlines for three others, and continue all other reporting requirements for TDCJ, the committee, Windham, and BPP.

Recommendation 8.5, Adopted — Continue the Judicial Advisory Council and the TCOOMMI advisory committee.

Recommendation 8.6, Adopted — Remove the Advisory Committee on Agriculture from statute.

Recommendation 8.7, Adopted — Update TDCJ's statute to reflect the requirements of the person-first respectful language initiative.

Recommendation 8.8, Adopted — Direct Windham to adopt a rule review plan. (Management action – nonstatutory)

ADOPTED NEW RECOMMENDATIONS

Annual Training For Counties

- Require TDCJ to provide annual trainings to counties on how to submit commitment documents, known as “pen packets.”

Expedited Training For Correctional Officers

- Direct TDCJ to explore expedited training pathways for qualified correctional officer (CO) candidates, including former COs, COs from other states, members of the military, and law enforcement personnel. As part of this recommendation, TDCJ should establish an expedited training curriculum, rather than the normal six weeks, for qualified candidates as defined by the agency. (Management action – nonstatutory)

Postsecondary Education

- Update Chapter 19 of the Texas Education Code with the following two changes:
 - Reflect education practitioner norms by updating terminology, including replacing “inmate” with “student,” “vocational training” with “career and technical education,” and “GED” with “high school equivalency certificate.”
 - Facilitate Windham’s new role of overseeing postsecondary education by authorizing data sharing with the Texas Higher Education Coordinating Board.
- Direct Windham School District to explore Texas State Technical College (TSTC) and community college partnerships generally. This recommendation directs the district to consider partnership opportunities between Windham and TSTC, and any other community colleges as applicable, to expand postsecondary career and technical education (CTE) at locations experiencing CTE program shortages due to instructor staffing or availability of specific high-demand programs. (Management action – nonstatutory)

Texas Board of Criminal Justice Experience Requirements

- Require that at least two members of the Texas Board of Criminal Justice board possess significant business or corporate experience.

Fiscal Implication Summary

Overall, the Sunset Commission's recommendations would result in savings to General Revenue of about \$734,876 annually, and starting in fiscal year 2028, savings of about \$49,111,430 annually to TDCJ. Otherwise, though several recommendations would not have a significant fiscal impact to the state, some would result in costs and savings that will depend on implementation and cannot be determined at this time.

The recommendation to require TDCJ to reduce program placement timelines by 50 percent and eliminate program placement delays starting September 1, 2027, would result in a total savings of \$147,334,290 by the end of fiscal year 2030. Savings associated with this recommendation could be returned to General Revenue or appropriated back to the agency for other functions beginning in fiscal year 2028. The recommendation to merge the Rehabilitation Programs Division and the Reentry and Integration Division would result in a small cost savings to the state of about \$202,213 in salary and benefits for each of the next five fiscal years and the reduction of at least one full-time equivalent employee.

The recommendation to eliminate the Private Facility Contract Monitoring and Oversight Division would result in a small cost savings of about \$532,663 in salary and benefits for each of the next five fiscal years and a reduction of three full-time equivalent employees.

Texas Department of Criminal Justice

Fiscal Year	Savings to the General Revenue Fund	Savings to TDCJ from Reduction in Parole Voted Placement Times	Savings to TDCJ from Elimination of Program Placement Delays	Change in FTEs from 2023
2026	\$734,876	\$0	\$0	-4
2027	\$734,876	\$0	\$0	-4
2028	\$734,876	\$29,540,544	\$19,570,886	-4
2029	\$734,876	\$29,540,544	\$19,570,886	-4
2030	\$734,876	\$29,540,544	\$19,570,886	-4

is able to update as needed to remain consistent with the realities on the ground.¹⁹ The statutory maximum capacities are not only unnecessary but could also be confusing for the public.

Sunset Staff Recommendations

Change in Statute

1.1 Require TDCJ to create a long-term facilities and staffing plan that identifies future needs and makes recommendations to organize resources and capacity accordingly.

This recommendation would require TDCJ to prepare and submit a 10-year plan that identifies its facility and capacity needs and includes recommendations for how the state can house inmates in facilities that can be appropriately staffed. Specifically, this recommendation would require TDCJ to:

- Examine the agency's ability and the cost to operate each facility based on current and future staffing levels, with consideration of demographic and economic trends and facility repair needs.
- Evaluate how the agency will distribute or consolidate inmates efficiently based on capacity and factors such as custody level, medical needs, and other special needs.
- Evaluate any facility retrofitting necessary to accommodate the needs of the agency's inmate population.
- Evaluate the future capacity build necessary to manage the projected inmate population, how that capacity build could be done in well-staffed parts of the state on land the agency already owns, and proposed timelines for implementation.
- Consider the various regional needs of the state while developing this plan, including any ancillary or community benefits associated with TDCJ facilities.

As part of this recommendation, TDCJ would seek approval from its board for the plan and present it to the governor, lieutenant governor, speaker of the House of Representatives, and legislative appropriations and oversight committees by September 1, 2026, and every four years thereafter. The agency may partner with an external consultant to develop this plan as needed.

This plan would arm state policymakers with the information they need to appropriately plan for TDCJ's future needs as the agency grapples with an ongoing staffing crisis and a growing inmate population.

1.2 Require TDCJ to develop a phased plan to close facilities with persistent staffing challenges.

This recommendation would require the agency to develop a phased plan to close facilities with persistent staffing challenges, particularly if TDCJ is able to bring more capacity online either by building expansion dorms as requested in the agency's 2026-27 Legislative Appropriations Request or by reducing staffing vacancies. To identify potential facilities for closure, TDCJ should consider a range of factors impacting the agency's ability to staff facilities as well as the ongoing costs to operate and maintain them. Sunset staff developed an example model as a potential starting point for this assessment, described further in Appendix H. In the example model, Sunset staff evaluated the agency's hardest-to-staff facilities using a series of metrics that provide insight into each facility's staffing challenges, capacity and type of capacity, available labor pool from which to hire, and cost to operate. TDCJ would have the discretion to use its

expertise to conduct its own analysis for potential facility closure, but its methodology should include at least the following factors:

- Vacancy rates
- Unit capacity
- County-level demographic and economic data
- Unit-deferred maintenance costs
- Receipt of COs via the staff transport models
- Number of cool beds
- Maximum security status

The plan should include estimated savings from reduced maintenance needs and any potential land sales. TDCJ would be required to submit this plan to its board for approval by September 1, 2026, and every four years thereafter.

1.3 Eliminate the requirement for TDCJ to maintain state jails in nine regions from statute.

This recommendation would remove the requirement for TDCJ to maintain state jails in nine regions, giving the agency flexibility to place state jail felons throughout its facilities in a more efficient manner. Without the need to house state jail felons according to region, the agency would have the discretion to centralize state jail felons into fewer regions. This recommendation could also help the agency concentrate programming specifically aimed at the state jail felon population in fewer facilities.

1.4 Eliminate unit maximum capacities from statute.

This recommendation would remove unit maximum capacities from statute and instead require TDCJ to maintain the updated unit maximum capacities in rule. This change would allow TDCJ to remain in compliance while enabling the agency and its board to adapt to changing inmate populations and capacity.

Fiscal Implication

Recommendations to develop the long-term staffing and facilities plan and the facility closure plan could be implemented with existing resources, but the exact fiscal impact depends on how the agency implements them. The agency could realize savings from reduced staff transport and less required maintenance on idled, partially idled, and closed facilities. The agency could also generate revenue from the sale of the land if TDCJ decides to close facilities.

Sunset Staff Recommendations

Management Action

2.1 Direct TDCJ to consolidate and expand its existing workforce retention and support functions under one department to better support employees and systematically identify root causes of turnover.

This recommendation would direct TDCJ to evaluate all divisions and personnel with relevant staffing and retention duties and consolidate key functions into a single department whose sole focus is workforce retention and support. This department would oversee existing retention-oriented initiatives, including employee recognition, financial incentives, state-owned housing, and other benefits. The department also would develop new initiatives such as structured mentorship, peer support, or other retention and wellness supports. In addition to existing functions that would be part of this department, TDCJ should also perform, at a minimum, the following additional workforce retention and support functions:

- Analyze data collected from staff surveys, focus groups, workplace issue filings, and other sentiment-gathering efforts to mine for insights and develop data-driven employee retention and support initiatives.
- Monitor core staff services, including timely completion of annual performance evaluations and implementation of pay adjustments, trends in workplace issue filings and sentiment data, and efforts to address critical turnover problems, and provide biannual progress reports to TDCJ executive staff and the board.
- Evaluate the effectiveness and ongoing need for existing employee retention and wellness supports.
- Develop and implement standard operating procedures for voluntarily separating employees, such as a TDCJ-specific exit survey or interview questions or a discussion of other open TDCJ positions.

This department would assist TDCJ in ensuring better coordination and centralization of workforce retention and support. The recommendation would enable the agency to more holistically identify management problems that lead to employee turnover and make better informed and systematic efforts to address them. TDCJ would be directed to establish this department by September 1, 2025, and provide its first biannual report by December 1, 2025, and first follow-up report by June 1, 2026. TDCJ should publish these reports on its website.

2.2 Direct TDCJ to conduct job task analyses for key roles, clarify task prioritization, and tailor evaluations, hiring objectives, and training materials as needed.

This recommendation would direct TDCJ to study the scope of tasks for key roles such as POs, HR, and IT staff, similar to an effort the agency has only recently begun for COs with help from academic partners. Given the prevalence of both critical understaffing and emergent situations at TDCJ, the analysis should clarify which tasks or positions should be prioritized under those circumstances, streamlining staffing plans and employee expectations to better match realities on the ground. As part of this recommendation, TDCJ should consider and plan for how to use technology like applicant tracking software to reduce inefficiencies and make better use of staff resources, including through the automation plan recommended in Issue 3. The agency could consider working with a research institution or other external consultant to help conduct the analysis. The recommendation would also direct the agency to use the results of the analysis to revise job descriptions and performance evaluations for the studied roles as well as tailor training and hiring objectives as needed, completing this effort for key roles by September 1, 2026.